

25CMCV02155 25CMCV02155

County: los-angeles

Division: Civil Law and Motion

Department: A

Hearing date: 2026-09-11

Motion: DEFENDANT DIEGO ANTONIO GARCIA'S MOTION TO STRIKE

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Case Number: 25CMCV02155 Hearing Date: September 11, 2026 Dept: A

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES – SOUTH CENTRAL DISTRICT

ALBERTO MAGALLON GARCIA, et al.,

Plaintiffs,

vs.

DIEGO

ANTONIO GARCIA, et al.,

Defendants.

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CASE NO: 25CMCV02155

[TENTATIVE]

ORDER RE: DEFENDANT DIEGO ANTONIO GARCIA'S MOTION TO STRIKE

Dept.

A

DATE:

September 11, 2026

TIME:

8:30 A.M.

Complaint:

12/22/2025

FAC:

07/06/2026

Trial:

08/28/2028

MOVING

PARTY: Defendant Diego

Antonio Garcia

RESPONDING

PARTY: Plaintiffs Alberto Magallon

Garcia and Sofia Mora Gomez Magallon

1. Background

This is a motor vehicle collision action. Plaintiffs Alberto Magallon Garcia and Sofia Mora Gomez Magallon (collectively, "Plaintiffs") allege that defendants Diego Antonio Garcia, Constantine Sergeev, and Diana Laura Serrano negligently operated their vehicle so as to cause a multi-car collision, causing Plaintiffs personal injury and property damage. Plaintiffs allege that Defendant Garcia was operating his vehicle at the time of the incident while severely intoxicated.

2. Discussion

Defendant Garcia

moves to strike the request for punitive damages from the FAC, as well as any allegations that he was driving while intoxicated. Defendant Garcia contends that an allegation of driving while intoxicated is insufficient to support a finding of malice, oppression, or fraud, as is required to establish punitive damages. In opposition, Plaintiffs contend that they have adequately pled malice.

Any

party, within the time allowed to respond to a pleading may serve and file a notice of motion to strike the whole or any part thereof. (Code of Civ. Proc., § 435, subd. (b)(1); Cal. Rules of Court, rule 3.1322, subd. (b).) The court may, upon a motion or at any time in its discretion and upon terms it deems proper: (1) strike out any irrelevant, false, or improper matter inserted in any pleading; or (2) strike out all or any part of any pleading not drawn or filed in conformity with the laws of California, a court rule, or an order of the court. (Code Civ. Proc., § 436, subd. (a)-(b); *Stafford v. Shultz*

(1954) 42 Cal.2d 767, 782.)

In

order to state a prima facie claim for punitive damages, a complaint must set forth the elements as stated in the general punitive damage statute, Civil Code section 3294. (College Hospital, Inc. v. Superior Court (1994) 8 Cal.4th 704, 721 (College Hospital).) These statutory elements include allegations that the defendant has been guilty of oppression, fraud or malice. (Civ. Code, § 3294, subd. (a).)

“In

order to survive a motion to strike an allegation of punitive damages, the ultimate facts showing an entitlement to such relief must be pled by a plaintiff. [Citations.] In passing on the correctness of a ruling on a motion to strike, judges read allegations of a pleading subject to a motion to strike as a whole, all parts in their context, and assume their truth. [Citations.] In ruling on a motion to strike, courts do not read allegations in isolation. [Citation.]” (Clauson v. Superior Court (1998) 67 Cal.App.4th 1253, 1255.) “The mere allegation an intentional tort was committed is not sufficient to warrant an award of punitive damages. [Citation.] Not only must there be circumstances of oppression, fraud or malice, but facts must be alleged in the pleading to support such a claim. [Citation.]” (Grieves v. Superior Court (1984) 157 Cal.App.3d 159, 166.)

“Malice is

defined in the statute as conduct intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.” (College Hospital, supra, 8 Cal.4th at p. 725 [examining Civ. Code, § 3294, subd. (c)(1)].) “A conscious disregard of the safety of others may constitute malice within the meaning of section 3294 of the Civil Code. In order to justify an award of punitive damages on this basis, the plaintiff must establish that the defendant was aware of the probable dangerous consequences of his conduct, and that he willfully and deliberately failed to avoid those consequences.” (Taylor v. Superior Court (1979) 24 Cal.3d 890, 895-896.)

“As

amended to include [despicable], the statute plainly indicates that absent an intent to injure the plaintiff, ‘malice’ requires more than a ‘willful and conscious’ disregard of the plaintiffs’ interests. The additional component of

'despicable conduct' must be found." (College Hospital, supra, 8 Cal.4th at p. 725.) The statute's reference to despicable conduct represents a "new substantive limitation on punitive damage awards." (Ibid.) Despicable conduct is "conduct which is so vile, base, contemptible, miserable, wretched or loathsome that it would be looked down upon and despised by ordinary decent people." Such conduct has been described as 'having the character of outrage frequently associated with crime.' (Tomaselli v. Transamerica Ins. Co. (1994) 25 Cal.App.4th 1269, 1287.)

An allegation

of driving while intoxicated may, in appropriate circumstances, "evidence a conscious disregard of probable injury to others and be sufficient to warrant an award of punitive damages." (Dawes v. Superior Court (1980) 111 Cal.App.3d 82, 88 (Dawes).) However, "[t]he risk of injury to other from ordinary driving while intoxicated is certainly foreseeable, but it is not necessarily probable." (Id. at p. 89.) The court in Dawes found that, where the plaintiff had alleged not only that the defendant was driving while intoxicated but was "zigzagging in and out of traffic at a speed in excess of 65 miles per hour in a 35-mile-per-hour zone at the entrance to a popular recreation area on a Sunday afternoon when many pedestrians and bicyclists were in the immediate vicinity," the risk of injury to others under the circumstances alleged was probable and therefore sufficient to justify punitive damages.

Here, by

contrast, Plaintiffs have alleged that Defendant Garcia operated a motor vehicle while intoxicated by both alcohol and prescription medication, traveled at an unsafe speed, and failed to maintain a proper lookout. The court in Dawes quoted Justice Franson stating that "[A]llegation of intoxication, excessive speed, driving with defective equipment or the running of a stop signal, without more, do not state a cause of action for punitive damages. [Par.] On the other hand, if the facts show that the defendant intentionally drove his vehicle at a high speed into an intersection crowded with pedestrians, or if he drove at a high speed through a crowded residential area where children were playing in the street, a legitimate inference of actual malice perhaps could arise. This would be particularly true if the defendant had not been drinking, or, if drinking, he was not under the influence to the point where he was incapable of being aware of the situation confronting him. Under these circumstances, it reasonably might be said that the defendant acted in such an outrageous and reprehensible manner that the jury could infer that he knowingly disregarded

the substantial certainty of injury to others. [Citation.]” (Id. at p. 90.)

Here,

Plaintiffs have made no factual allegations demonstrating that Defendant Garcia acted in such an outrageous and reprehensible manner that a reasonable trier of fact could infer that he knowingly disregarded the substantial certainty of injury to others and engaged in despicable conduct, as merely driving at an unsafe speed, even while intoxicated, is insufficient alone to establish that injury to others was probable. Plaintiffs argue that Defendant Garcia made the deliberate choice to consume both alcohol and two impairing prescription medications, then chose to operate a truck at high speeds on the freeway during rush hour. This conduct is not distinct from the basic allegation that Defendant Garcia drove at high speeds while distracted and intoxicated. Becoming intoxicated and choosing to become intoxicated, within this context, are not so substantively different as to give rise to a finding of conscious disregard of probable injury or despicable conduct.

Plaintiffs

additionally cite to *Peterson v. Superior Court* (1982) 31 Cal.3d 147 for the proposition that driving while intoxicated may support a request for punitive damages. However, *Peterson* includes further allegations of dangerous driving beyond merely driving while intoxicated. In *Peterson*, the defendant consumed alcohol and drove with the plaintiff in the vehicle at speeds in excess of 100 miles per hour. (Id. at p. 162.) After the plaintiff stopped the defendant and admonished him to drive more slowly and properly control the vehicle, the defendant nonetheless consumed more alcohol and continued driving at high speeds, causing the accident. (Ibid.) Therefore, *Peterson* is distinguishable, as it included allegations of dangerous driving, with knowledge of probable dangerous consequences, substantially beyond those alleged in the complaint in the instant action. Here, Plaintiffs alleged that Garcia drove at 65 miles per hour at rush hour while intoxicated and while distracted by his cell phone, which is insufficient to state a cause of action for punitive damages under *Dawes*. Recklessness alone is insufficient to sustain an award of punitive damages in the absence of despicable conduct or evil motive. (*Lackner v. North* (2006) 135 Cal.App.4th 1188, 1211-1212.)

However,

Garcia requests that the court strike all allegations concerning his

intoxication while driving, not merely Plaintiffs' request for punitive damages. As allegations of Garcia's intoxication while driving are potentially relevant to Plaintiffs' negligence causes of action, the court declines to strike these allegations. The court will therefore grant in part Garcia's motion to strike punitive damages from the complaint. As the court has previously granted a motion to strike punitive damages from the original complaint, and Plaintiffs' amendment has failed to adequately allege factual allegations supporting punitive damages, the court will deny leave to amend.

3. Conclusion

Based on the foregoing, the court GRANTS IN PART Defendant Diego Antonio Garcia's motion to strike punitive damages from the complaint. Paragraphs 19, 20, 21, 28, 29, 30, 42, 43, 44, 45, 46, and 48 of the FAC, as well as paragraph 6 of the prayer for relief in the FAC, are stricken.

Garcia is ordered to give notice.

IT IS SO ORDERED.

DATED: September 11, 2026

Hon. Elizabeth L. Bradley

Judge of the Superior Court